

Parkash Singh vs Santosh Kaur on 26 November, 1993

Equivalent citations: I(1994)DMC291

JUDGMENT

Harmohinder Kaur Sandhu, J.

1. Santosh Kaur filed complaint under Sections 406, 498A I.P.C. read with Section 34 I.P.C. against her husband Parkash Singh and father-in-law Sohan Singh alleging that they had misappropriated her dowry articles and had also treated her with cruelty. After preliminary evidence was recorded only Parkash Singh was summoned to face trial under Section 406 and 498A I.P.C. by Sub-Divisional Judicial Magistrate, Kharar vide his order copy of which is Annexure P/2. The complaint against Sohan Singh was dismissed. Parkash Singh filed the present petition under Section 482 of the Code of Criminal Procedure for quashing the complaint Annexure P/1 and subsequent proceedings arising therefrom on the ground that the allegations made in the complaint did not reveal a prima facie case for the offences for which he was summoned. The allegations were false and motivated and the complaint was filed in order to harass him and other members of his family.

2. During the pendency of this petition Santosh Kaur respondent moved a petition under Section 13 of the Hindu Marriage Act for a decree of divorce, where the parties effected compromise and petitioner consented to the dissolution of his marriage with Santosh Kaur by a decree of divorce.

3. The learned Counsel for the petitioner contended that the parties had effected compromise and in divorce proceedings respondent had made a statement that she will not peruse the complaint Annexure P/1. It was, therefore, urged that since the matter had been amicably settled by the parties and the respondent did not want to pursue the complaint so it will be in the interest of justice that the complaint as well as the proceedings are quashed.

4. The learned Counsel for the respondent submitted a reply to the application filed by the petitioner whereby permission was sought to produce statements of the parties recorded in divorce proceedings and in this reply too it was admitted that the parties had effected compromise. The statement of Santosh Kaur recorded in a petition under Section 13 of the Hindu Marriage Act dated 21.8.1993 shows that she did not intend to peruse the complaint and she offered to withdraw the same.

5. From the documents placed on record it is made out that the parties have effected compromise and the respondent is not to support the allegations made in the complaint in view of the compromise. So although the offences for which the petitioner was summoned are not compoundable yet the prosecution is not to end in to conviction of the petitioner under any circumstances. The continuation of the proceedings, thus, will amount to futile exercise and

harassment to the petitioner.

6. As a result I allow this petition and quash the complaint Annexure P/1 and subsequent proceedings arising therefrom.